

**JUSTIFICATION AND APPROVAL FOR
OTHER THAN FULL AND OPEN COMPETITION
10 U.S.C. § 3205**

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by Federal Acquisition Regulation (FAR) 12.102(b), FAR Class Deviation 25-21 Rev. 1 for FAR Part 12¹, FAR 6.103, FAR Class Deviation 25-11 for FAR Part 6 and in accordance with the requirements of RFO 6.104, the justification for the use of the statutory authority under RFO 6.103 is justified by the following facts and rationale required under RFO 6.104-1 as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security, United States Coast Guard (USCG), Aviation Logistics Center (ALC), Medium Range Recovery (MRR) Product Line proposes to enter into a contract on a basis other than full and open competition.

2. Nature and/or Description of the Action being Approved.

- (a) Nature of the action: The USCG intends to procure on a sole source basis one (1) Tail Cone Fixture and one (1) Tail Cone Sling to be utilized on the MRR Product Line. The items must be procured from the Original Equipment Manufacturer (OEM), STADCO.
- (b) Name and address of the contractor:
STADCO
107 South Avenue 20
Los Angeles, CA 90031
Cage Code: 21225
- (c) Contract Type: Firm Fixed Price (FFP), Purchase Order (PO)
- (d) Estimated total value (including options): [REDACTED] broken down as follows:

Item Description	Quantity	Unit Price
Tail Cone Fixture	1 ea.	[REDACTED]
Sling, Dual Strap, Tail Cone	1 ea.	
	Total	

- (e) Type of funding: Procurement, Construction, and Improvement (PC&I) Funds
- (f) Year of funding: Fiscal Year 2026

¹ In this document, citations to RFO Parts 12, 6, 10, 15, and 25 are citations specifically to Federal Acquisition Regulation (FAR) Class Deviation 25-21 Rev. 1 for FAR Part 12, FAR Class Deviation 25-11 for FAR Part 6, FAR Class Deviation 25-06 for FAR Part 10, FAR Class Deviation 26-08 Rev. 1 for FAR Part 15, and FAR Class Deviation 26-09, Rev. 1 for FAR Part 25, which were issued as part of the Revolutionary FAR Overhaul (RFO), which was implemented in response to Executive Order 14275, Restoring Common Sense to Federal Procurement, signed April 15, 2025.

- (g) Solicitation number: 70Z03826QJ0000128
- (h) Background information about the requirement: The Tail Cone Fixture and Tail Cone Slip was previously awarded on Purchase Order, 70Z03819PR0000385, to STADCO, valued at \$452,263. The period of performance began on 08/23/2019 and expired on 02/25/2020.

3. Description of Supplies/Services.

The Tail Cone Fixture and Tail Cone Sling are necessary to maintain operational tempo with Program Maintenance Depot (PDM) cycles. This procurement will provide a second dedicated area for all major rework required for tail cones while increasing the safety margin by affording the ability to securely mount the tail cone while artisans are overhauling it. STADCO is the OEM of these items which are uniquely modified for the USCG MH-60T airframe requirement at ALC. The Tail Cone Fixture and Tail Cone Sling serve as a rigid hard-point fixture, allowing for the change of the canted bulkhead fitting without the need to “clone” mounting holes from the removed fitting.

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. § 3205 as implemented by RFO 12.102(b), and RFO 6.103 and in accordance with the requirements of RFO 6.104.

5. Identification of Exception to the Buy American Statute.

The nonavailability exception to the Buy American Statute does not apply to this requirement.

6. Demonstration that the proposed contractor’s unique qualifications or the nature of the acquisition requires use of the authority cited.

- (a) Rationale for using the authority cited in section 4 of the J&A:

The specifications, manufacturing drawings, data, test equipment, and tooling required for the manufacture of the items under this justification are proprietary to the OEM, STADCO. The USCG did not purchase rights to the proprietary data required to foster a competitive environment as part of any original provisioning and the cost to procure this data would be cost prohibitive. There are no authorized distributors of these items.

- (b) Details covering what events lead to the situation requiring use of other than full and open competition procedures including whether any portion of the work can be segregated to allow for competition:

Sources Sought Notice (SSN), 70Z03826IJ0000006, was posted at www.SAM.gov 10/24/2025 and expired 11/10/2025 in an effort to identify additional vendors. No responses were received in response to this posting. STADCO confirmed via email, dated 03/10/2026 they are the OEM and there are no authorized distributors of these items.

- (c) Summarize alternatives considered and why they will not work:

The current Tail Cone Fixture and Tail Cone Sling used on the MRR Product Line was procured by STADCO in 2019 and was uniquely modified for the USCG MH-60T airframe requirement at ALC. Other overhaul depots utilize STADCO items, but as previously stated the original one was modified specifically to meet the requirements for the USCG MH-60T airframe. Therefore, alternatives cannot be considered.

- (d) Impact to the mission that would result if the J&A is not approved and, consequently, the product or service not provided:

Failure to approve this sole source J&A will jeopardize the performance of the USCG's mission impacting the MH-60T PDM cycle operational tempo.

- (e) Rationale for use of the nonavailability exception to the Buy American statute, including detailed information explaining why the particular articles, materials, or supplies of the class or kind to be acquired, either as end items or components, are not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities and of a satisfactory quality:

The nonavailability exception to the Buy American Statute does not apply to this requirement. Therefore, the Buy American Statute will be included in both the solicitation and terms and conditions of this Purchase Order.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

- (a) If an entry was made in APFS, provide the publication date:

This acquisition is forecasted in the Department of Homeland Security (DHS) Acquisition Planning Forecast System (APFS), number F2026072774 published on 02/18/2026 and can be found at <http://apfs.dhs.gov>. There were no responses received as a result of the APFS posting.

- (b) If an announcement has already been made in SAM.gov, provide the publication date:

Not applicable.

- (c) If an announcement is being planned for posting in SAM.gov, provide the estimated publication date:

This Justification for Other Than Full and Open Competition (J&A) will be posted to the Government-wide Point of Entry (GPE) website, SAM.gov, under solicitation 70Z03826QJ0000128 with an estimated publication date of 07/08/2026.

- (d) If an announcement will not be published, identify the applicable exception under RFO Part 5:

Not applicable.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer determines the anticipated prices will be determined fair and reasonable based on comparison with the Independent Government Cost Estimate and by comparison of similar items in related industries.

9. Description of Market Research.

- (a) Describe the market research techniques used, results, date(s) when the market research was conducted, and how the contracting officer used the market research to determine price reasonableness:

Market research was conducted IAW FAR Part 10 from December 2025 – March 2026. DHS APFS entries were reviewed and no pre-existing entries were found. SSN,70Z03826IJ0000006, was posted at SAM.gov on 10/24/2025, in efforts to identify other potential sources. No responses were received for this posting. A review of the Asset Maintenance Management Information System (AMMIS) database history was conducted to determine the acquisition method for the requirement, anticipated costs by reviewing past purchase history, and asset performance. In addition, government databases such as Federal Logistics (FEDLOG), General Services Administration (GSA) Advantage, and FedMall were all reviewed as part of market research. Existing DHS-wide contract vehicles were reviewed and were out of scope of this requirement. The market research showed that STADCO is the OEM, and furthermore the only source capable of providing the items, as the items were uniquely modified for the USCG MH-60T airframe. The OEM confirmed they are the only vendor to possess the proprietary data and there are no authorized distributors of the items. Given this information, the only source capable of providing the items is STADCO.

- (b) Describe the market research results that support the determination that the items are nonavailable:

Not applicable.

- (c) If market research was not conducted, state why:

Not applicable.

- (d) If patents, copyrights, and/or intellectual property are applicable to the acquisition, describe the circumstances for acquiring a patented or copyrighted product on the representation of the intellectual property holder that has not been licensed for resale and consult with the Coast Guard IP attorney:

Not applicable.

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10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

- (a) An explanation why technical data packages, specifications, statement of work, or purchase descriptions are not suitable for full and open competition:

STADCO is the only approved source that can provide the Tail Cone Fixture and Tail Cone Sling needed for the MRR Product Line. The technical data, engineering specifications, and technical drawings are proprietary to the OEM, STADCO. The USCG did not purchase the rights to the proprietary data required to foster a competitive environment and the costs to procure this data would be cost prohibitive. Therefore, this requirement is not suitable for full and open competition.

- (b) Discuss why your requirement cannot be modified to enhance competition:

As cited in 6(a), the USCG can only procure these items from the OEM. This requirement will ensure these items are manufactured to OEM specifications that were uniquely created for the USCG MH-60T airframe and maintain quality and integrity of the items. Given this information, this requirement cannot be modified to enhance competition.

- (c) For a proposed contract subject to the restrictions of RFO 6.103-for follow-on acquisitions as described in 6.103-1(c)(2)(i), all components must provide an estimate of the cost to the Government that would be duplicated and detailed information on how the estimate was derived:

This requirement is not subject to the restrictions of RFO 6.103, as described in 6.103-1(c)(2)(i).

- (d) For a proposed contract subject to the restrictions of RFO 6.103-2(c) or HSAR 3006.103-2(c)(70), HSAR Class Deviation 25-01 and where RFO 6.103-2 is cited as the authority, describe the exceptional circumstances allowing for an award for a period of performance in excess of the one-year limitation (applicable to all federal agencies) or the DHS-specific statutory 150-day limitation:

Not applicable.

11. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.

To date, there have been no other sources that have expressed interest in this requirement.

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12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

- (a) Will the Government revise overly technical specifications, acquire data rights, etc.?

The USCG does not possess the technical data required to foster full and open competition for the purchase of both the Tail Cone Fixture and Tail Cone Sling covered under this justification and approval. The USCG will continuously conduct market research to ensure that companies interested in doing business with the USCG are given every opportunity to compete for future USCG requirements. To increase competition, MH-60T program members conduct internet database research and ensure procurements are advertised in SAM.gov. If another potential source emerges, and the USCG can obtain the required technical data, the USCG will assess whether competition for any future requirements is feasible.

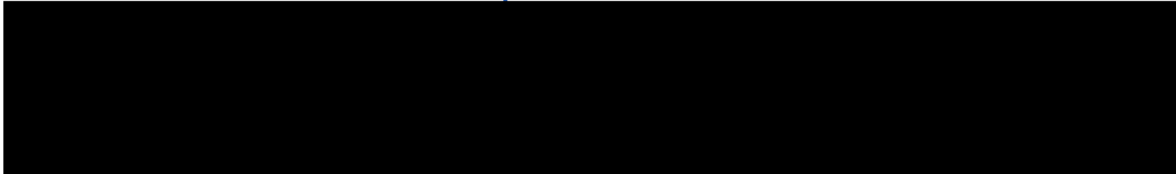
- (b) When a J&A is issued for the purposes of acquiring goods or services while a competitive procurement is being conducted, the justification should include a detailed timeline for completion of the competitive procurement. The period of performance for the sole source action should fairly balance the time needed to complete the competitive procurement. The focus should be on minimizing the need for additional sole source awards:

Not applicable.

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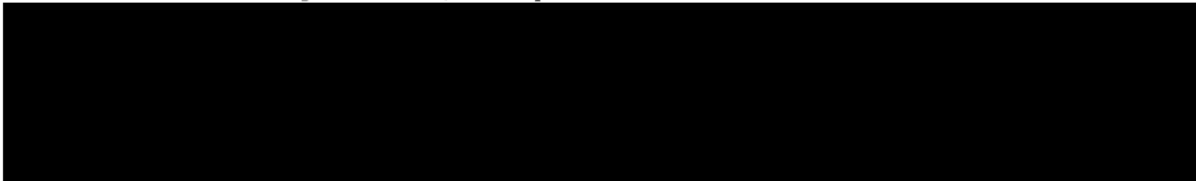
13. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.



14. Technical/Requirements Personnel Certification.

I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.



15. Approval.

